DIVISION BENCH ITEM NO.113

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ
CP (CAA) No.10/ALD/2022 IN CA (CAA) No.3/ALD/2022
(Second Motion)

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 21st December, 2023

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**A-ONE AGRIFOODS AND BEVERAGES PVT LTD & ORS WITH SUPERLATIVE WINES PVT. LTD.**
UNDER SECTION	**230/232 OF COMPANIES ACT 2013**

COUNSEL APPEARED THROUGH PHYSICAL/ VIRTUAL HEARING:

Sh. Anang Kumar Shandilya alongwith Sh. Anurup Dutta, Advs. *: For the Petitioner*

Sh. Ajeet Kumar Singh, AOL *: For the OL/Alld*

Sh. Rishabh Govila Proxy for Sh. Krishna Dev Vyas, Adv. *: For the RoC*

Sh. Krishna Agarwal, Sr. Sc. *: For the IT Deptt.*

ORDER

1. This is the second motion petition, in which the reports on behalf of the ROC/RD (NR) as well as the Official Liquidator have already been filed.

2. In reply to the reports of the Income Tax Department, the supplementary affidavit has been filed by the petitioner vide Diary No.3237 dated 19th December, 2023 in compliance of the order dated 14th December, 2023 passed by this Tribunal.

3. Further a counter affidavit has also been filed on behalf of the applicants particularly, with respect to the Transferee Company at page no.22,

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thereby clarifying the position with regard to the outstanding amount of Rs.2,87,49,990/- concerning the Assessment Year of 2016-17 where according to the Ld. Counsel representing the applicant that rectification has been carried out and the revised 26AS has been updated on 9th October, 2023.

4. Ld. Counsel representing the Income Tax Department, however, seeks a short adjournment to get the clarification from the concerned department as to any specific order has been passed for giving credit in the 26AS after rectification of the TCS amount.

5. Let the matter be adjourned for further hearing on 11th January, 2024.

-Sd- ***-Sd-***

(Ashish Verma) **(Praveen Gupta)**
Member (Technical) **Member (Judicial)**

21st December, 2023

Avaneesh Kumar Singh
(Stenographer)